

		Probate Code section 2640 permits a conservator to petition for the payment of attorney fees, after an Inventory and Appraisal has been filed and after Letters have issued. In this case, an Inventory and Appraisal has not been filed and Letters have not issued. Moreover, the court’s Final Statement of Decision (ROA 841) does not state or imply that Ms. Perkins is entitled to prevailing party fees. Rather, the Statement of Decision states that the court will rule on “future fee <i>petitions</i> for costs and attorney fees” (emphasis added) consistent with the authorities cited by the court. Indeed, such petitions have since been filed by the guardian <i>ad litem</i> and the proposed conservatee. (ROAs 877 and 914.) The court finds that there is no provision in the Probate Code that permits the prevailing party in a conservatorship action to be awarded fees payable by the opposing parties. Thus, Ms. Perkins’s motion for attorney fees is denied. <u>Motion for Orders Against Mr. Geare as Trustee</u> Ms. Perkins is requesting that fees be awarded against Mr. Geare in his capacity as trustee of the Donald and Helen Goodwin Trust. Mr. Geare was a party to the instant action, but not in his capacity as trustee because the underlying trial was not a trust litigation. Thus, even assuming <i>arguendo</i> that there exists a basis for awarding attorney fees to Ms. Perkins as prevailing party, such fees could not be awarded against Mr. Geare as trustee. Ms. Perkins seeks other orders against Mr. Geare as trustee. Specifically, she seeks an order for Mr. Geare to account for all trust funds used to pay the attorney fees incurred in the instant litigation, as well as an order for all such funds to be reimbursed to the trust. Such requests must be made via a trust petition in the court of proper jurisdiction over the trust. Thus, Ms. Perkins’s motion for orders pertaining to the trustee is denied. Counsel for Ms. Page is ordered to give notice of this ruling.
5	Harris – Trust (2023-01343455)	MOTION TO SUSPEND TRUSTEE AND ORDER HER TO OBTAIN SEPARATE COUNSEL Timothy F. Jones (“Timothy”) moves this court for an order suspending Kathie M. Jones (“Kathie”) as Trustee and appointing Timothy as interim Trustee. Members of the Jones family are

referred to by their first names for clarity only. No disrespect is intended. (*Young v. McCoy* (2007) 147 Cal.App.4th 1078, 1081 fn.2.; and *In re Marriage of Olsen* (1994) 24 Cal.App.4th 1702, 1704, fn. 1.) Timothy further seeks an order requiring Kathie to obtain separate legal counsel in her individual capacity. In the alternative, Timothy requests an order that Kathie be prohibited from using Trust funds to pay for claims for reimbursement against the Trust. All requests are **DENIED**.

Timothy’s request for judicial notice is **GRANTED** as to exhibits A and B. While the court takes judicial notice of certain exhibits as listed above, the court does not take judicial notice of the truths asserted within those exhibits. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCourt* (2001) 91 Cal.App.4th 875, 882; *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375; Evid. Code, §§ 452, subd. (d)(l), (c), (h), 453; *Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 264-265; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.)

As pointed out in Kathie’s opposition to the instant motion, the arguments raised in this motion are not any different than those raised in the motion denied by the court on 6/7/24. (ROA 82.)

The 6/7/24 ruling was made without prejudice to Timothy’s right to seek the same relief upon the presentation of additional evidence. Timothy argues that, since the 6/7/24 ruling, there is substantial new evidence regarding the basis of Kathie’s claims for reimbursements. However, all of Timothy’s arguments still go to the merits of Kathie’s claims for compensation which will be decided at trial.

There remains no evidence that Kathie’s suspension is necessary to preserve Trust assets. There is no indication that Kathie will reimburse herself for any trustee claims without a court order.

There is no new evidence of a conflict of interest between Kathie and the Trust. While Timothy stands by his position that Kathie is an independent creditor of the Trust, the court’s position remains that Kathie is a trustee seeking compensation and reimbursement which she claims are allowed by the Trust. (ROA 82.) The court, at this stage, makes no finding here as to the merits of any of Kathie’s claims.

Thus, there are still no grounds for suspending Kathie at this time.

		There is no legal authority for Timothy's request that the court order Kathie to obtain separate counsel to represent her in her individual capacity. As more fully set forth in the court's 6/7/24 ruling, Kathie is well within her right to use trust funds to represent her in the pending petitions concerning the Trust accounting and her claims for trustee compensation. There is no evidence before the court that the Trustee is incurring excessive or unreasonable attorney's fees, or that an order prohibiting the Trustee from using Trust funds to pay attorney's fees is otherwise necessary. Timothy's requested orders are again denied without prejudice. However, Timothy should ensure that any possible future motion seeking the relief sought in this motion is based on more than his same position that Kathie is not ultimately entitled to the compensation she seeks. Counsel for Kathie is ordered to give notice.
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